

TENTATIVE RULING

Case: **Sunset Village v. Wilson**
Case No. CV2026-1608

Hearing Date: **June 26, 2026** **Department Two** **1:30 p.m.**

Defendant Joseph Wilson's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subds. (c) and (h), 453.)

Defendant's demurrer to plaintiff Sunset Village's complaint is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to show, through matters on the face of the complaint or judicially noticeable, that plaintiff's complaint does not state facts sufficient to constitute a cause of action. (*Ibid.*; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; see also *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) Defendant has failed to show that the person named on the notice is a corporation. (*City of Alameda v. Sheehan* (2024) 105 Cal.App.5th 68, 81-82.)

As the Court is overruling defendant's demurrer, defendant's request to dismiss is **DENIED**. (Code Civ. Proc., § 581, subd. (f)(1).)

Defendant is ordered to file their answer by **July 1, 2026**. (Code Civ. Proc., §§ 586, subd. (a)(2), 1167.3.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.